

Psychiatric Injury (1)

Topics outline

1. The general exclusionary rule
2. Primary v secondary victims
3. Requirements for primary victims
4. Requirements for secondary victims
5. Employees
6. Summary and critique



1. The General Exclusionary Rule

The general rule



❑ D does not normally owe C a duty of care in respect of psychiatric injury unless that injury is consequent upon physical injury or property damage.

➤ Consequent on physical injury:

- D runs over C in car, and C's leg is injured.
- C can no longer climb mountains, which is one of his favourite hobbies, and C is very sad.
- Result: C can recover for his mental anguish – PSLA damages.

➤ Not consequent on physical injury:

- D, a law lecturer, tells his tort law students about the shocking events at Hillsborough stadium in graphic detail, and shows them horrific photos of the event.
- One of his students, C, develops PTSD after the lecture.
- Result: D owes C no duty of care in respect of pure psychiatric injury.

The general rule



Attia v British Gas [1988] QB 304

Facts:

- ❑ D's negligence installing central heating system led to C's house burning down.
- ❑ Watching her house burn down led to C becoming anxious and depressed.

Held:

- ❑ D was liable for C's psychiatric injury, because it was simply a consequence of the property damage.

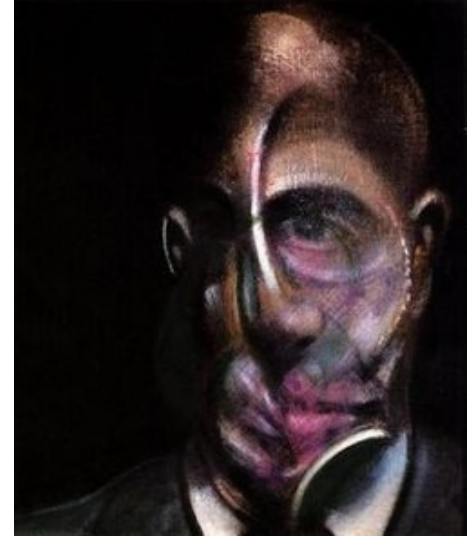
Justifications for the exclusionary rule

1. “greater diagnostic uncertainty in psychiatric injury cases than in physical injury cases. The classification of emotional injury is often controversial. In order to establish psychiatric harm expert evidence is required.”
2. “litigation is sometimes an unconscious disincentive to rehabilitation”
3. Floodgates: “in cases of pure psychiatric harm there is potentially a wide class of plaintiffs involved”
4. “a burden of liability on defendants which may be disproportionate to tortious conduct involving perhaps momentary lapses of concentration”

(Lord Steyn in *White*)



2. Primary v Secondary Victims |



Definition of primary victims

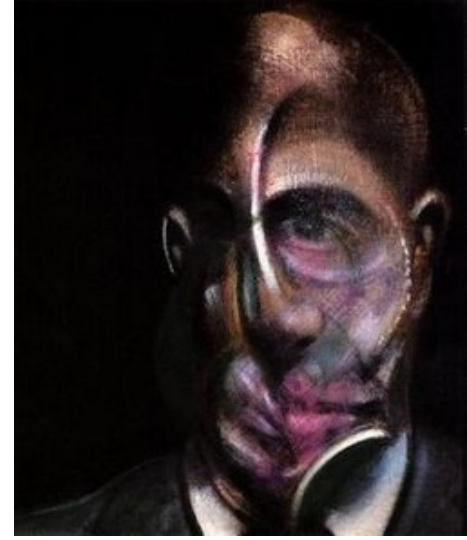
Page v Smith [1996] 1 AC 155

Facts:

- ❑ C suffered from chronic fatigue ('ME').
- ❑ C was in a car crash, caused by D's negligent driving.
- ❑ C not physically injured, but his ME worsened significantly.

Held:

- ❑ D was liable for C's ME worsening, because C was within the "zone of physical danger".



Definition of primary victims

Page v Smith [1996] 1 AC 155

- “In the present case ... [C] was a participant. He was himself directly involved in the accident, and well within the range of foreseeable physical injury. He was the primary victim.”
- “those who are involved in an accident [are] the primary victims, and ... those who are not directly involved, but who suffer from what they see or hear, [are] the secondary victims.”

(Lord Lloyd, p.184)

Definition of primary victims



Monk v PC Harrington Ltd [2008] EWHC 1879

Facts:

- ❑ C was a foreman working on Wembley stadium.
- ❑ Platform fell and killed a worker.
- ❑ C felt responsible for the accident and developed psychiatric illness.

Definition of primary victims



Monk v PC Harrington Ltd [2008] EWHC 1879

Three categories of primary victims from *Alcock* (at [11-12]):

1. “cases where the claimant was within the actual area of physical danger when the accident occurred and was directly at risk of bodily injury or reasonably believed that this was so.”
2. “rescuers who go to the aid of others involved in the accident. ... in order to be regarded as primary victims, rescuers must also have been exposed to danger or reasonably believed that they were in danger.”
3. “where the claimant was an ‘unwilling participant’ in the accident, in the sense that: ‘the negligent act of the defendant has put the plaintiff in the position of being, or of thinking that he is about to be or has been, the involuntary cause of another's death or injury and the illness complained of stems from the shock to the plaintiff of the consciousness of this supposed fact.’”

Definition of primary victims



Monk v PC Harrington Ltd [2008] EWHC 1879

Held:

“Mr Monk's belief that he might have somehow caused the accident in which his fellow workmen suffered injury was unreasonable in the circumstances. It was therefore not reasonably foreseeable that someone in his position would suffer psychiatric injury as a result of such a belief.” [49]

Definition of primary victims



W v Essex CC [2001] 2 AC 592

Facts:

- ❑ Cs were parents of foster children, placed in their care by local authority, D.
- ❑ Cs told the council they were not willing to accept any child who was known or suspected of being a sexual abuser.
- ❑ D gave them such a child anyway, without their knowledge, and the child sexually abused C's other children.
- ❑ Cs became severely depressed and developed PTSD.

Held:

- ❑ Physical injury to Cs was not foreseeable – so not primary victims in the *Page v Smith* sense. BUT ... they might be considered primary victims anyway, as 'unwilling participants'.

Definition of primary victims



W v Essex CC [2001] 2 AC 592, Lord Slynn, p.601

- “the categorisation of those claiming to be included as primary or secondary victims is not as I read the cases finally closed. It is a concept still to be developed in different factual situations.”
- “I do not consider that any of the cases to which your Lordships have been referred conclusively shows that, if the psychiatric injury suffered by the parents flows from a feeling that they brought the abuser and the abused together or that they have a feeling of responsibility that they did not detect earlier what was happening, they are prevented from being primary victims.”

Definition of secondary victim?

- Anyone who is not a primary victim, or does not fit into one of the 'other' special victim categories
- Normally people who have witnessed something bad happen to someone else and develop psychiatric injury as a result

Making psychiatric injury simple

Primary victims

- A. Foreseeable personal injury (or 'unwilling participant')
- B. Recognised psychiatric illness

Secondary victims

- A. Recognised psychiatric illness
- B. Foreseeable psychiatric illness in a person of ordinary fortitude
- C. Resulting from an accident
- D. The 3 elements of proximity

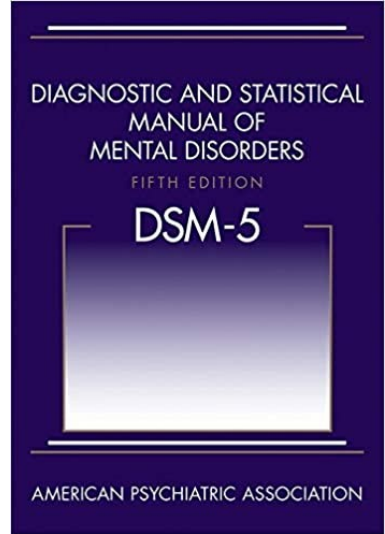


3. Requirements for Primary Victims

Primary Victim requirements

- A. Foreseeable personal injury (or 'unwilling participant')
- B. Recognised psychiatric illness

B. Recognised psychiatric illness



- ❑ Recognised psychiatric illnesses: PTSD, ME, OCD, schizophrenia, depression etc.
- ❑ Not recognised: grief, sorrow, regret, fear, sadness and other normal human emotions.

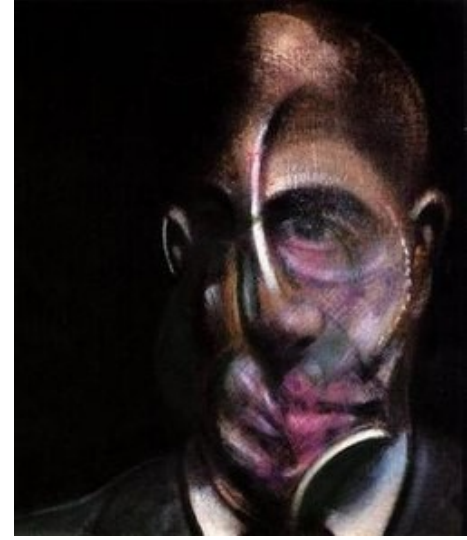


4. Requirements for Secondary Victims

Secondary victim requirements

- A. Recognised psychiatric illness
- B. Foreseeable psychiatric illness in a person of ordinary fortitude
- C. Resulting from an accident
- D. The 3 elements of proximity:
 - i. Close ties of love and affection
 - ii. Proximity in time and space to the accident or its aftermath
 - iii. Sight or hearing of the accident or its aftermath

B. Foreseeable psychiatric illness



“Foreseeability of psychiatric injury remains a crucial ingredient when the plaintiff is the secondary victim, for the very reason that the secondary victim is almost always outside the area of physical impact, and therefore outside the range of foreseeable physical injury.”

(Lord Lloyd, *Page v Smith*, p.187)

B. Foreseeable psychiatric illness

Bourhill v Young [1943] AC 92

Facts:

- ❑ C, a pregnant woman, witnessed a motorbike accident.
- ❑ C did not see the accident but heard it and saw blood.
- ❑ C suffered psychiatric illness.

Held:

- ❑ D owed no duty of care because not foreseeable that she would suffer psychiatric illness.



B. Foreseeable psychiatric illness



Bourhill v Young [1943] AC 92

“It is not every emotional disturbance or every shock which should have been foreseen. The driver of a car or vehicle, even though careless, is entitled to assume that the ordinary frequenter of the streets has sufficient fortitude to endure such incidents as may from time to time be expected to occur in them, including the noise of a collision and the sight of injury to others, and is not to be considered negligent towards one who does not possess the customary phlegm.”

(Lord Porter, p.117)

B. Foreseeable psychiatric illness



Bourhill v Young [1943] AC 92

“The appellant was completely outside the range of the collision. She merely heard a noise, which upset her, without her having any definite idea at all. .. She saw nothing of the actual accident, or, indeed, any marks of blood until later. I cannot accept that ... the reasonable hypothetical observer could reasonably have foreseen, the likelihood that anyone placed as the appellant was, could be affected in the manner in which she was.”

(Lord Wright, p.111)

C. Resulting from an accident



Paul v Wolverhampton NHS Trust [2024] UKSC 1

Facts:

- ❑ Victims were given negligent treatment by D (healthcare services), and then died months/years later as a result.
- ❑ Cs witnessed the deaths and developed psychiatric illnesses.

Held:

- ❑ D owed no DoC to Cs, because they did not involve an 'accident', but rather a 'medical crisis'.

C. Resulting from an accident



Paul v Wolverhampton NHS Trust [2024] UKSC 1

- “The question raised by these appeals is whether witnessing a negligently caused medical crisis (or its aftermath) can in principle found a claim for damages by a secondary victim or whether such a claim can lie only where the triggering event is an accident ...” [53]
- “we do not consider that an analogy can reasonably be drawn between the situation with which *McLoughlin, Alcock* and *Frost* [a.k.a. *White*] were concerned where illness is caused by witnessing an accident ... and situations where the claimant does not witness an accident but suffers illness as a result of witnessing such a person suffering a medical crisis.” [115]

C. Resulting from an accident



Paul v Wolverhampton NHS Trust [2024] UKSC 1

- ❑ “An accident is an external event which causes, or has the potential to cause, injury: it is not the injury, if there is one, caused by that event.” [105]
- ❑ “[A]n accident is, by definition, a discrete event in the ordinary sense of that word, meaning something which happens at a particular time, at a particular place, in a particular way. Whether someone was present at the scene and whether they directly perceived an accident are in most cases questions which admit of a clear and straightforward answer. These criteria for determining whether a person is eligible to claim compensation as a secondary victim therefore have the great merit of providing legal certainty.” [108]

C. Resulting from an accident



Paul v Wolverhampton NHS Trust [2024] UKSC 1

- “[W]e would not accept that our society has yet reached a point where the experience of witnessing the death of a close family member from disease is something from which a person can reasonably expect to be shielded by the medical profession. ... [S]uch an experience is not an insult to health from which we expect doctors to take care to protect us but a vicissitude of life which is part of the human condition.”
[139]